

Court No. - 29

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co.
And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Tarun Agarwala,J.

Hon'ble Rajiv Gupta,J.

Learned counsel appearing for the Electric Supply Company, the Respondent Nos. 1 & 2 will file counter affidavit within four weeks.

Issue notice to the Respondent Nos. 3 & 4 by registered post A.D. Steps be taken within a week.

List for admission after expiry of four weeks on the date fixed in the summons by which time the said respondents will file counter affidavit.

Order Date :- 13.12.2017

S.K.

(Rajiv Gupta,J.) (Tarun Agarwala,J.)

Court No. - 39

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co. And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Attau Rahman Masoodi,J.

Hon'ble Ajai Tyagi,J.

Learned counsel for the petitioner prays for and is granted two weeks' time to file supplementary affidavit bringing on record the sale agreement, according to which, he was put in possession of the premises in dispute.

List this case in the week commencing 23.05.2022.

Order Date :- 4.5.2022

P.S.Parihar

Court No. - 40

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co. And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

List this matter on **12.01.2023** showing the name of Sri Mehboob Ahmad, Advocate who has appeared on behalf of the fifth respondent.

Order Date :- 5.1.2023

Jaswant

Court No. - 40

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co. And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

List revised.

Learned counsel for the petitioner is present. No one appears on behalf of respondents.

List as peremptorily on 19.01.2023.

Order Date :- 12.1.2023

A. Pandey

Court No. - 40

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co. And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

It has been informed that Ms. Usha Kiran is authorised to receive notice on behalf of KESCO.

List this matter on 30.01.2023 showing the name of Ms. Usha Kiran as learned counsel for the KESCO.

Learned counsel for the petitioner will inform in writing to Ms. Usha Kiran, learned counsel about this order.

Order Date :- 19.1.2023

SP/

Court No. - 40

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co. And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

On account of elections of High Court Bar Association today i.e 30.01.2023 Hon'ble the Chief Justice has already passed a 'no adverse order' on 27.1.2023.

Mrs. Usha Kiran, learned counsel for the electricity department is not present in the revised call.

The case is passed over.

Order Date :- 30.1.2023

RKP

Court No. - 40

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co. And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Vide this Court order dated 13.12.2017, notices were issued to respondent Nos.3 & 4. However, no counsels on behalf of respondent Nos.3 & 4 are present to press this writ petition.

Ms. Usha Kiran, learned counsel representing the respondent No.1, Kanpur Electricity Supply Company, Kanpur, through its Managing Director, prays for and is accorded two weeks' and no more time to file response in the matter.

List this matter on **16.03.2023** in the **top ten cases** of **list of additional cause list**.

Order Date :- 20.2.2023

Sachin/

Court No. - 40

Case :- WRIT - C No. - 59452 of 2017

Petitioner :- Rahul Pandey

Respondent :- Kanpur Electricity Supply Co. And 4 Others

Counsel for Petitioner :- Pawan Kumar Rao

Counsel for Respondent :- Sanjay Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Manjive Shukla,J.

Heard Sri Pawan Kumar, learned counsel for the petitioner and Ms. Usha Kiran, learned counsel for the Corporation.

By means of this petition the petitioner has sought following reliefs:-

"i) issue a writ, order or direction in the nature of certiorari quashing the order dated 13.7.2017 passed by the Executive Engineer, respondent no.3 (Annexure No.3 to the writ petition);

ii) issue a writ, order or direction in the nature of certiorari quashing the order dated 31.10.2017 passed by the Electricity Consumer Grievance Redressal Forum, respondent no.5 (Annexure No.5 to the writ petition).

iii) issue a writ, order or direction in the nature of mandamus directing the respondent nos.1 and 2 to provide electricity connection in favour of the petitioner forthwith over his shop running at 127/35 MIG, Hamirpur Road, W-Block, Juhi, Kanpur."

Learned counsel for the petitioner, on the basis of instructions, states that the petitioner applied for getting a new electricity connection under the Electricity Supply Code, 2005 and he has deposited the requisite amount. The demand of electricity dues of Rs.4246/- only is raised against the shop in question and the petitioner is ready to deposit the said amount. The request has been made to decide the claim of the petitioner in the light of Para 4.1 of the Electricity Supply Code, 2005.

Ms. Usha Kiran, learned counsel for the Corporation has no objection to the said prayer.

No useful purpose would be served in keeping the writ petition pending.

Considering the facts and circumstances, this writ petition is disposed of finally with observation that in case the petitioner deposits the outstanding amount of Rs.4246/- within two weeks from today, the authority would proceed to redress the grievance of

the petitioner strictly in accordance with law in further two weeks.

Order Date :- 16.3.2023

RKP